

Woodbury Community Association

Design Guidelines

Revised: September 2013; January 2019; December 2020

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1.00 Introduction

1.10 Woodbury Community Association Responsibilities

The Woodbury Community Association (“Master Association”) is responsible for preparing these Design Guidelines. No other party may revise this document.

Enforcement of these Design Guidelines is either by the Master Association or by a Sub-Association.

If a home is subject to a Sub-Association, then the Sub-Association’s design review committee (“DRC”) reviews plans and specifications for all proposed ‘improvements’ (as defined in the Master Declaration).

If a home is not subject to a Sub-Association, then the Master Association’s design review committee (“DRC”) reviews plans and specifications for all proposed ‘improvements’ (as defined in the Master Declaration).

1.20 Purpose of Design Guidelines

The purpose of these Design Guidelines is to provide continuity for the physical character of the Community. The intent is to give specific design criteria to owners of attached and detached homes (“owners”) for subsequent improvements after the completion of original construction.

The Design Guidelines are written to preserve a high quality of appearance, and to assure compatibility between improvements. They are intended to be used by owners and consultants in preparing plans and specifications for architectural, landscape, and other improvements; and by the DRC in reviewing these plans and specifications for conformance with the stated objectives. The DRC reviews proposed improvements for aesthetic purposes only. It is the owner’s responsibility to comply with all applicable federal, state, and local laws, ordinances, and building codes.

1.30 Definitions

Various capitalized words and phrases used herein are defined in the Master Declaration and, unless otherwise indicated, shall have the same meaning herein as is ascribed to them in the Master Declaration.

2.00 Design Guidelines

2.10 Architecture

2.11 Architectural Character

All architectural improvements must be compatible with the original architectural character of the Community.

Below are general guidelines for building materials, colors, and forms which are expressive of the Community's architectural character; and which will be used by the DRC in reviewing plans and specifications for compatibility with the original design.

COMPLIANCE WITH THE DESIGN GUIDELINES SHALL NOT BE IN LIEU OF DRC APPROVAL. COMPLIANCE WITH THE DESIGN GUIDELINES SHALL BE DETERMINED BY THE DRC AS PART OF THE APPROVAL PROCESS. THE DESIGN GUIDELINES MAY BE MODIFIED FROM TIME TO TIME AS SET FORTH IN THE MASTER DECLARATION.

2.12 Exterior Alterations to Attached Homes

Exterior alterations to Attached Homes, including, but not limited to, room additions; changes to balconies, decks, or porches; new or replacement doors and windows; exterior stairways; awnings; roof modifications; skylights; solar equipment; basketball backboards; exterior lights; decorative flags; exterior color changes; and accessory buildings, such as, but not limited to, storage sheds, greenhouses, pool houses, and playhouses, are not allowed.

2.12.1 Communication Equipment at Attached Homes

All exterior radio antennae, television antennae, satellite dishes and other transmitting or receiving devices must comply with the Master Declaration. Communications equipment should be located in less visible locations and not exceed the ridgeline of any roof. All cables should be installed within the house wall and be painted to match the adjacent surface where visible on the exterior of the house.

2.13 Exterior Alterations to Single Family Detached Homes

The maximum building heights and the minimum building setbacks of all new construction at Single Family Detached Homes shall be consistent with the City of Irvine Zoning Code.

2.13.1 Sunrooms and Solariums at Single Family Detached Homes

Sunrooms and solariums at Single Family Detached Homes must be designed so that their form and color are compatible with the existing architecture; and must be completely screened with landscaping. The maximum height is 12 feet and the minimum setback to the property line is 5 feet. No metal roofs are permitted. Roofs shall match the existing architecture, with the roof pitch matching the existing roof pitch. Prefabricated, curved-roof sunrooms and solariums are prohibited.

2.13.2 Room Additions at Single Family Detached Homes

The material, color, and texture of new exterior walls of room additions at Single Family Detached Homes shall be compatible with the existing dwelling walls. Any new fascia must match any existing fascia. Enhanced wall finishes, such as brick and stone, must be designed to wrap corners, to appear to be integral to the house design, rather than as applied decoration.

The roof pitch, detailing, and fenestration should match the existing home.

New building features--such as planters and pot shelves--must be compatible with the color and design of the existing home. The color of new downspouts must match the wall color, or be compatible.

Blank two-story high walls at room additions should not face parks, streets, or other public viewing areas. All new dwelling walls must be softened with trees to minimize the visual massing impact.

2.13.3 Columns at new construction at Single Family Detached Homes

New columns at Single Family Detached Homes should be integral with the house design, with a substantial scale (e.g. stout columns and deep recesses). Pipe columns are not permitted.

2.13.4 Balconies at new construction at Single Family Detached Homes

The location, material, and color of new exterior balconies at Single Family Detached Homes shall be compatible with the existing house. Balcony railings must be designed to obscure stored items, such as by using combination of metal railings and solid stucco walls; or by using wide wood pickets; or must match the materials, color, and design of any existing railing on the home. Horizontal pipe railing is not permitted. Landscape planting enhancements may be required to provide privacy screening on behalf of adjacent lots.

2.13.5 Exterior Stairs at new construction at Single Family Detached Homes

The location, material, and color of new exterior stairs at Single Family Detached Homes shall be compatible with the existing house. Stair supports must be designed as integral parts of the house. Pipe columns are not permitted. Generic or commercial-looking prefabricated metal stairs are not permitted. Spiral stairs may be permitted if they are compatible with the house architecture.

2.13.6 Roofs at new construction at Single Family Detached Homes

The slope, material, color, and texture of any new roof at Single Family Detached Homes shall be identical to the existing roof. Mansard and flat roofs are not permitted. New roof features--such as skylights, chimneys, or solar equipment--must be compatible with the design of the existing house. Roof-mounted equipment must be completely screened. The color of new roof flashing, diverters, vent stacks, and similar features must match the existing roof color.

2.13.7 Skylights / Roof-mounted Solar Equipment at Single Family Homes and Multi-Family Buildings

A. Notwithstanding any provision or restriction contained in the Master Declaration, solar panels/mechanical devices associated with solar energy systems (collectively, "solar equipment") may be installed within the Community subject to prior written approval from the DRC, or, where applicable, a Sub-Association's design review committee. Installation on common area or association property components is limited to the roof of the building in which the owner applicant resides, or a garage or carport adjacent to the building that has been assigned to the owner for exclusive use ("Multi-Family Components").

Skylights and roof-mounted solar equipment at conventional Single Family Detached Homes, Detached Condominiums, and Attached Condominiums must be designed to be integral parts of the roof. Their form, location, and color must be compatible with the existing roof. All solar equipment exposed to the exterior shall be located in a manner that minimizes visual impact and must comply with all applicable government regulations. Profiles must be minimized (i.e. mounted parallel with the roof angle at the minimum vertical clearance from roofing material). All supports and piping for solar collectors must be enclosed. Exposed elements including conduits shall be painted to match the adjacent building surface. The color of skylights and solar collector frames must be compatible with the roof color. Silver aluminum frames are not permitted.

B. For solar equipment installation on Multi-Family Components, the following additional requirements shall apply:

1. In addition to providing the aesthetic specifications of solar equipment, an application must be accompanied with the following:

a) A copy of owner's contract with the contractor who will install the solar equipment, which contract shall include provisions requiring the contractor to be licensed and insured, and provides a minimum ten (10) year installation warranty.

b) A solar site survey showing the placement of the solar energy system prepared by a licensed contractor or the contractor's registered salesperson knowledgeable in the installation of solar energy systems to determine usable solar roof area. The solar site survey shall also include a determination of an equitable allocation of the usable solar roof area among all owners sharing the same roof, garage, or carport and written certification or other written confirmation from a structural engineer licensed in California that the roof of the condominium building, garage or carport on which the solar equipment will be installed is capable of bearing the weight of the solar equipment (if installed in accordance with the Plans) without any adverse effect on the structure.

The survey shall ensure a fair allocation of usable solar space among multiple owners of separate interests because the roof space that is usable for a solar energy system, or multiple systems, will vary from building to building, depending on location and environmental factors. In this regard, an owner applicant's equitable usable share of the roof, garage, or carport shall be limited to the percentage his/her unit represents among all other units in building (e.g. if there are 6 units in one building, then the solar site survey must identify 6 usable shares of the roof, garage, or carport space, each of which usable shares must provide approximately equal benefits in terms of solar energy efficiency and desirability) and the association reviewing the application will select one of the identified usable shares for the owner applicant to use to install such owner's solar equipment.

c) Proof of written notification to the Sub Association and each owner of a unit in the building on which the installation will be located of the application to install a solar energy system. The written notification shall be made by certified mail, mailed to the owner's mailing address(es) on record with the Master Association and Sub Association, and include a copy of the design and location of the solar energy system and a copy of the solar site survey of the equitable allocation of the usable solar roof area among all owners sharing the same roof, garage, or carport. The written notification shall include the following statement in bold: "Space and location for solar energy systems on the roof, garage or carport shared by owners of this building is limited and my proposed solar energy system may restrict availability of space and location for future solar energy systems." Proof of written notification must be made by providing the association reviewing the application with (i) a copy of the written notification provided to the owners and (ii) copies of the certified mail receipts.

d) Failure to provide a solar site survey or failure to comply with the written notification requirement shall result in a denial of the application. In the event an owner presents an inaccurate or fraudulent site survey, or fails to provide written notification to each owner in the building, an approval by the association may be nullified.

2. If owner's solar energy system is approved, prior to installation the following is required:

a) The owner must sign a covenant agreement, to be recorded against the owner's unit, which is acceptable to the impacted Sub Association, and which requires, among other things, that the owner and all subsequent owners (i) are responsible for all costs for damage to the common area or other separate interests, including, but are not limited to, damage, destruction, or wear and tear to the roof arising from the installation, maintenance, repair, removal, or existence of the solar equipment; (ii) are responsible for all costs for the maintenance, repair and replacement of the solar equipment itself, and for restoration of the common area or any separate interest after its removal; (iii) must disclose to prospective buyers the existence of any solar energy system of the owner and the related responsibilities of the owner under the covenant agreement; (iv) must maintain a homeowner liability coverage policy of not less than One Million

Dollars (\$1,000,000.00) at all times naming the Association as an additional insured and provide the association with the corresponding certificate of insurance within 14 days of approval of the application and annually thereafter; and (v) must indemnify the impacted Sub Association and owners of other units in the building for claims resulting from or arising in connection with the solar energy system.

Owner shall pay for legal fees of preparing and costs of recording the agreement.

b) The owner's installer must sign a license agreement which is acceptable to the impacted Sub Association, and which requires, among other things, the installer to (i) reimburse the Master and Sub Association for all costs for damage to the common area or other separate interests resulting from the installation, maintenance or other work related to the solar equipment, (ii) maintain general liability insurance in an amount of at least One Million Dollars (\$1,000,000.00) naming the Association as an additional insured; (iii) maintain workers' compensation insurance, including employer's liability at a minimum limit of One Million Dollars (\$1,000,000) for all persons whom it employs, in strict conformance with the requirements of the most current and applicable Workers' Compensation Laws in effect during the performance of any work related to the solar equipment, and (iv) indemnify the Master Association, Sub Association and owners of other units in the building for claims resulting from or arising in connection with the solar energy system.

3. Upon completion of installation, along with the Notice of Completion, Owner shall provide the association reviewing the application with a duly licensed contractor's written certification that construction and installation of the solar equipment did not adversely affect either the structural integrity or weather barrier of the roof, garage or carport.

2.13.8 Exterior Windows and Doors at Single Family Detached Homes

The size, location, material, and color of new windows and doors at Single Family Detached Homes shall be compatible with the windows and doors of the existing house. Recessed window and door openings are encouraged.

New accent windows and doors--such as greenhouse windows or French doors--must be compatible with the color and design of the existing house. Post-modern features, such as large areas of glass block, are not permitted. Changes to windows and doors--such as glass tinting and decorative front doors--must be compatible with the color and design of the existing house. Reflective glass is not permitted.

2.13.9 Awnings at Single Family Detached Homes

Awnings at Single Family Detached Homes must be compatible with the color and design of the existing house. They must be simple in design and color. The size, location, and form must be in scale with the window and should not dominate the architecture. Awnings proposed on front elevations or on side elevations at corner lots will be considered relative to their compatibility with the architecture. Awnings are not appropriate on certain elevation styles and on certain accent windows.

Temporary sun shades attached to the vertical face of the house, patio cover, or gazebo--such as rolls of bamboo, fiberglass, or reed--are not permitted.

2.13.10 Garage Doors at Single Family Detached Homes

Changes to garage doors at Single Family Detached Homes must be compatible with the design and color of the existing garage door; or painted or stained a color that is compatible with the exterior color scheme of the home. Treatments that draw attention to the garage door---such as mirrored glass or ornate decoration on or around the garage door--are not permitted. Standard white metal garage doors are not permitted.

Features to soften the dominance of the garage door on the streetscene are encouraged--such as a horizontal trellis above the garage door, trees in the driveway, or a gateway at the front walk.

2.13.11 Basketball Backboards at Single Family Detached Homes

Permanent basketball backboards attached to a Single Family detached home are prohibited. Permanent basketball backboards attached to a pole are allowed depending on the location and the ability to be screened. The backboard and all attachments must be of reasonable size and maintained continually in good repair. Clear backboards are also permitted.

Portable, freestanding basketball backboards are permitted, provided that they are removed when not in use. In no event shall free-standing basketball backboards be permitted to remain overnight in a location visible from any street, sidewalk, or property owned or maintained by the Master Association ("Master Association Property"), or be stored in a location visible from any street, sidewalk, or Master Association Property. Portable, free-standing basketball backboards must only be located and used on the residential Lots and are not permitted on any public property or Master Association Property.

2.13.12 Exterior Lighting at Single Family Detached Homes

New exterior light fixtures at Single Family Detached Homes--such as decorative wall fixtures, lanterns on short columns, low-voltage lights, uplights, and light posts--must be compatible with the design of the house. They must be simple in design and color; and should be compatible with the existing light fixtures.

Only full cut-off downlights, recessed lights, or landscape uplights are permitted in front yards (e.g., exposed light fixtures on pilasters, light bollards, and light posts are prohibited).

Lights in rear yards must be screened. The top of light fixtures in rear yards must be below the top of the wall unless they are full cut-off downlights, to prevent off-site glare.

All flood lights and other utilitarian light fixtures must be screened from the street and adjacent homes. Light fixtures operated by motion detectors are permitted if approved by the DRC and if the fixture design is compatible with the architecture.

All light fixtures must be directed away from adjacent streets and properties to prevent off-site glare.

2.13.13 Communication Equipment at Single Family Detached Homes

All exterior radio antennae, television antennae, satellite dishes and other transmitting or receiving devices must comply with the Master Declaration. Communications equipment should be located in less visible locations and not exceed the ridgeline of any roof. All cables should be installed within the house wall and be painted to match the adjacent surface where visible on the exterior of the house.

2.13.14 Flags at Single Family Detached Homes

One decorative flag is permitted per home. The flag may not exceed three (3) feet in width and five (5) feet in length. It must have no commercial content or objectionable message; and must be maintained continually in good repair. The flag pole holding the decorative flag must be no longer than six (6) feet in length. The pole must be removed when a flag is not displayed.

2.13.15 Outdoor Storage / Accessory Buildings at Single Family Detached Homes

All items stored outside--such as garden hoses, yard equipment, dog houses, trash cans, recycling bins, and compost containers--must be completely screened from the Master Association Property (e.g., streets, parks and greenbelts). Accessory buildings, such as, but not limited to, storage sheds, greenhouses, pool houses, and playhouses, are only permitted in rear and side yards enclosed by high opaque walls. The top of the building must be below the top of the wall and screened with landscaping approved by the DRC so that the building is not visible from streets, parks, or greenbelts.

2.13.16 Color Changes at Single Family Detached Homes

The original house colors must remain, unless written permission to change colors is given by the DRC. Any color changes must be different than the adjacent homes; and must be compatible with the neighboring homes and with the architectural style of the house.

2.14 Relationship to Design Guidelines for a Sub Association

In case of a conflict between the Design Guidelines adopted by the Master Association and Design Guidelines adopted by a Sub Association, attached as an addendum hereto, the more restrictive standards will be enforced.

2.20 Landscape

2.21 Landscape Character

The landscape character of Woodbury is designed to create an overall cohesive community framework, while allowing and encouraging neighborhood diversity and individual home character. The desire is to keep the landscape and hardscape improvements at the same high quality as the homes and community facilities, so that all improvements are compatible.

2.22 Alterations at Attached Homes and Detached Condominiums

No alterations to any landscape or hardscape maintained by the Master Association or Sub Association are allowed.

Only alterations to exclusive-use patio areas are allowed. Any existing gate, fence, patio wall, garden wall, or planter at Attached Homes and Detached Condominiums must remain as built by the Merchant Builder.

The attachment of items such as, but not limited to, wood lattice, wire grids, plants, trellises, tree stakes, and barbeques, to any Merchant Builder-installed feature such as, but not limited to, fence, patio wall, garden wall, planter, or gate, is not allowed.

No improvement of any kind whatsoever (including, but not limited to, landscaping or trellis) shall be attached to a neighbor's house. Vines attached to a freestanding patio wall or garden wall are allowed.

2.22.1 Patio covers at Attached Homes and Detached Condominiums

Patio covers may be attached to Detached Condominiums, but shall not be attached to Attached Homes. Unless otherwise noted in supplementary guidelines for a Sub-Association, patio covers shall be located a minimum of three (3) feet **clear** from existing garden walls or fences (as measured from outermost part of the structure, including the overhang); and shall be visually softened with plant materials. The square footage of patio covers for Attached Homes is limited to a maximum of 50% of the square footage of the private yard where the patio cover is located. Patio covers shall be a maximum of ten (10) feet high from the grade to the highest point. If a patio cover is a gazebo with a hipped roof, then the maximum height is twelve (12) feet from the grade to the highest point

The appearance of patio covers and other exterior structures, such as gazebos, must be consistent with the appearance of the house. The color must match the house trim or the wall color. The pitch of sloping roofs must match the roof pitch on the house. The material of sloping roofs must match the roof material on the house or must be 50% open wood or metal roofs. All horizontal roofs must be 50% open. Wood or metal—or material that simulates the appearance of wood or metal—is required for open patio covers. Decorative features such as lattice may be incorporated into the design of the patio cover but the features must be consistent with the character of the Community. Elaborate ornamentation is not permitted. Roofs of gravel, plastic, fiberglass, and corrugated metal are not permitted. Columns may be stucco, pre-cast, or wood. Metal columns are not permitted unless they are required by the Orange County Fire Authority; and are designed to be compatible with the architecture. Iron garden gazebos, arbors, etc., may be approved on a case-by-case basis.

2.22.2 Minimum setbacks for new construction at Attached Homes and Detached Condominiums

Major improvements such as, but not limited to, permanent barbeques, sculptures, raised planters of 36 inches in height or more, water features, equipment, and other items of 36 inches in height or more, shall be located a minimum of thirty-six (36) inches clear from a neighbor's house or perimeter wall, or greater, as noted below. Minor improvements, such as, but not limited to, wood lattice, wire grids, trellises, and tree stakes shall be located a minimum of eighteen (18) inches clear from a neighbor's house or perimeter wall.

2.22.3 New paving at Attached Homes and Detached Condominiums

The width of any existing common area exterior walkway must remain as built by the Merchant Builder. No change to this paving is permitted. New patio paving shall include the use of expansion joint or a minimum one-inch horizontal gap separating new patio paving from perimeter walls and fences; and from a neighbor's house. Permitted paving materials include concrete, integral-colored concrete, brick, decomposed granite (except at walkways to front doors), exterior pavers, cut stone, and flagstone, in colors compatible with the existing stucco and masonry accents on the house.

2.22.4 Thematic landscape features at Attached Homes and Detached Condominiums

Thematic landscape features with overly-distinctive colors, forms, or materials that establish an independent theme that detracts from the overall street scene--such as glass block, statues, sculpture, topiary, dry streambeds, bonsai, mirror balls, pink flamingos, Astroturf, rock gardens, gravel yards, boulders, cactus, waterfalls, railroad ties, and split rail fencing--are not permitted in patio areas visible from streets.

2.22.5 Landscaping in patio areas at Attached Homes and Detached Condominiums

All trees shall have root barriers; and shall be located to allow access to maintain a neighbor's house or wall. Except for patio covers and gazebos, the top of all landscape features--such as garden walls, fences, statues, and playhouses--must be below the top of the perimeter wall or screened with landscaping approved by the DRC so as to be invisible from streets, parks, greenbelts or other Master Association Property, and adjacent homes. Play structures may be permitted to exceed the height of the patio wall, if they comply with the restrictions below.

2.22.6 Patio Walls and Raised Planters at Attached Homes and Detached Condominiums

The material, color, and texture of new garden walls and raised planters must be compatible with the walls and architecture of the existing house. Garden walls and raised planters of uncovered concrete block are not permitted. The height of any new wall must be below the height of existing walls. Vines and hedges are encouraged on all garden walls to soften their appearance. Soil shall not be retained against any existing wall or fence. Four-inch minimum width, waterproof flash walls shall be provided between any new raised planter and any existing wall or fence.

2.22.7 Fences at Attached Homes and Detached Condominiums

The material and color of new fences must be compatible with the fences and architecture of the existing house. The height of any new fence must be below the height of existing garden walls. An ornamental gate that includes an arbor or a light-weight trellis that is higher than the existing wall may be allowed if the design supports the architectural style of the home and is compatible with the adjacent homes.

Fences of chain link, poultry wire, woven wire, aluminum, sheet metal, unpainted wood lattice, plastic, fiberglass, reeds, straw, bamboo, rope, and other similar temporary or commercial materials are not permitted.

2.22.8 Outdoor Fireplaces at Attached Homes and Detached Condominiums

Outdoor fireplaces shall be consistent with all applicable governmental codes, including, without limitation, the regulations of the Orange County Fire Authority.

Outdoor fireplaces shall be located in patio areas and shall be simple and residential in design. Outdoor fireplaces with highly independent designs, overly ornate designs, or commercial-looking designs are not allowed.

Unfinished or painted precision concrete block is not allowed. The color and finish of stucco fireplaces must be the same as the color and finish of the stucco on the house.

If the top of the outdoor fireplace is greater than the top of the perimeter wall or fence, or if the outdoor fireplace is located adjacent to an open view fence, then the outdoor fireplace shall be designed so that its form, material, and color are compatible with the architecture of the house.

Outdoor fireplaces of six (6) feet, or less, in height shall be located a minimum of three (3) feet clear from patio walls or fences. Outdoor fireplaces between six (6) feet and twelve (12) feet in height shall be located a minimum of five (5) feet clear from patio walls or fences. Outdoor fireplaces (12) feet in height shall be located a minimum of ten (10) feet clear from patio walls or fences. The maximum allowed outdoor fireplace height from the original lot grade is twelve (12) feet.

Trees and/or shrubs should be planted in the 3- to 10-foot clear area between the property line (or perimeter wall or fence) and the outdoor fireplace, to completely screen the appearance of the back of the outdoor fireplace from adjacent neighbors.

Outdoor fireplaces should be designed to use natural gas, instead of wood, so that the use does not create a nuisance. Outdoor fireplaces must comply with all applicable Orange County Fire Authority regulations.

2.22.9 Barbeques and Wet Bars at Attached Homes and Detached Condominiums

Barbeques and wet bars shall be located a minimum of three (3) feet clear from patio walls and fences; shall be located according to applicable laws and manufacturer's recommendations; and shall only be located in patio areas that are screened from the street. Screening with trees and/or shrubs is also required; and review by the DRC is required. At open view fences, any improvement greater than eighteen (18) inches high--including accessory buildings, such as, but not limited to, garden sheds, playhouses, and play structures--shall be located a minimum of two (2) feet clear from the fence; and the area between the improvement and the fence shall be landscaped so that the improvement is not visible from any street, park, greenbelt, or patio of an adjacent home.

2.22.10 Play Structures at Attached Homes and Detached Condominiums

No play structure should be installed without approval by the DRC.

Play structures, such as, but not limited to, swing sets, jungle gyms, and slides, shall be located a minimum of five (5) feet clear from patio walls and fences, or according to applicable laws and manufacturer's recommendations, whichever is greater.

Play structures shall be a maximum of ten (10) feet high from the grade to the highest point.

If the top of the play structure is greater than the top of the perimeter wall or fence, or if the play structure is located adjacent to an open view fence, then the following standards apply:

The area between the play structure and the wall/fence shall be landscaped with trees and/or shrubs so that the appearance of the play structure is screened from any street, common area, adjoining lot, or other off-site view.

The color of the play structure should be compatible with the color of the house, rather than being a redwood or brightly-colored play structure.

Play structures should not be roofed because the roofs are not compatible with the architecture. Shade trees should be planted for sun control.

A dimensioned color photograph or a manufacturer's catalog illustration shall be submitted to the DRC with the plans and specifications for the proposed improvement.

Additional landscape screening of play structures may be required on a case-by-case basis to ensure that the play structures are screened from off-site views.

All play structures will be reviewed on a case-by-case basis.

2.22.11 Water Features at Attached Homes and Detached Condominiums

Water features that are greater than 30 inches above grade of the ground floor level, such as, but not limited to, reflecting pools, ponds, and fountains, are only allowed in front yards if they are strongly related to the architectural style of the house; and if they are approved by the DRC.

The water feature must not damage existing walls or fences. All equipment shall be completely screened from view from streets, parks, and greenbelts. Noise must be controlled to minimize the impact on neighbors.

All pumps and ground-mounted solar collectors must be designed and located to be unobtrusive, in accordance with the requirements of the Master Declaration. Profiles must be minimized. Colors must be compatible with the house. All supports and piping must be enclosed. All roof-mounted solar collectors must comply with the requirements of these Design Guidelines.

Construction of the Water Feature must not disturb neighbors' yards or property owned and/or maintained by the Master Association.

2.22.12 Drainage / Grading at Attached Homes and Detached Condominiums

The drainage pattern established with the original grading of the Lot must be maintained. No drainage will be permitted onto common area slopes, landscaping, or adjacent lots. All new drain lines must connect to existing drain lines or inlets provided by the builder.

Any change to the grading must be designed so that the final grade adjacent to a neighbor's house complies with applicable codes and with good engineering practices

2.22.13 Speakers at Attached Homes and Detached Condominiums

Speakers must be screened with landscaping to not be visible from the street or greenbelt.

2.22.14 Use of Neighbor's Yard at Attached Homes and Detached Condominiums

The use of a neighbor's yard for construction access is not permitted unless the neighbor has given written consent. The use of property owned and/or maintained by the Master Association for construction access is not permitted, unless the applicant signs an indemnification for damage and posts a construction deposit in an amount determined by the DRC, for repair of damage to property owned and/or maintained by the Master Association.

2.23 Alterations at conventional Single Family Detached Homes

The primary purpose of landscaping in private yards visible from streets--such as front yards and corner side yards--is to produce an attractive street appearance. All yards visible from streets must be automatically irrigated.

Modification of the Master Association-maintained parkway between the sidewalk and street curb is not permitted.

2.23.1 Patio covers at conventional Single Family Detached Homes

Patio covers at conventional Single Family Detached Homes shall be located a minimum of three (3) feet **clear** from existing property lines, walls, or fences (as measured from outermost part of the structure, including the overhang).

The square footage of patio covers will be reviewed in relation with the square footage of the yard. The intent is to retain an attractive Community appearance with a balance of buildings and open space.

Patio covers shall be a maximum of ten (10) feet high from the grade to the highest point. If a patio cover is a gazebo with a hipped roof, then the maximum height is twelve (12) feet from the grade to the highest point

The appearance of patio covers and other exterior structures, such as gazebos, must be consistent with the appearance of the house. The color must match the house trim or the wall color. The pitch of sloping roofs must match the roof pitch on the house. The material of sloping roofs must match the roof material on the house or must be 50% open wood or metal roofs. All horizontal roofs must be 50% open. Wood or metal—or material that simulates the appearance of wood or metal—is required for open patio covers. Decorative features such as lattice may be incorporated into the design of the patio cover but the features must be consistent with the architectural style. Elaborate ornamentation is not permitted. Roofs of gravel, plastic, fiberglass, and corrugated metal are not permitted. Columns may be stucco, pre-cast, or wood. Metal columns are not permitted unless they are required by the Orange County Fire Authority; and are designed to be compatible with the architecture. Iron garden gazebos, arbors, etc., may be approved on a case-by-case basis.

2.23.2 New paving visible to streets at conventional Single Family Detached Homes

Paved areas at conventional Single Family Detached Homes shall be minimized in yards visible to streets. Paving in the Master Association-maintained parkway between the sidewalk and street curb is not permitted.

Driveway expansions at conventional Single Family Detached Homes are not permitted, except for a maximum of 2-foot wide bands of enhanced paving on each side; or a single 3.5-foot band of enhanced paving on one side.

A planting area is required along the back of the sidewalk at conventional Single Family Detached Homes and shall be a minimum of five (5) feet wide. A garden wall or pilaster that exceeds thirty-six (36) inches in height from grade must have a minimum setback of five (5) feet from the back of the sidewalk. A garden wall or pilaster that is thirty-six (36) inches or less in height from grade must have a minimum setback of three (3) feet from the back of the sidewalk.

Walkways to front doors at conventional Single Family Detached Homes must not exceed 6 feet in width. Variances may be granted for front yards that are larger than average.

Permitted paving materials include concrete, integral-colored concrete, brick, decomposed granite, exterior pavers, cut stone, and flagstone, in colors compatible with the existing stucco and masonry accents on the house.

2.23.3 Thematic landscape features at conventional Single Family Detached Homes

Thematic landscape features with overly-distinctive colors, forms, or materials that establish an independent theme that detracts from the overall streetscene--such as excessive glass block, mirror balls, pink flamingos, Astroturf, rock gardens, gravel yards, boulders in turf areas, boulders over twelve inches high in shrub areas, cactus, waterfalls, fountains that are incompatible with the architecture, railroad ties,

and split rail fencing--are not permitted in private yards at conventional Single Family Detached Homes that are visible from streets.

2.23.4 Trees at conventional Single Family Detached Homes

Removal of trees in the Master Association-maintained parkway between the sidewalk and street curb is not permitted. Trees installed by the original Merchant Builder in other locations must remain in place.

If the front yard landscaping is not provided by the original Merchant Builder, a minimum of two (2) 24-inch box trees are required in each front yard, located within 15 feet of the back of the sidewalk at conventional Single Family Detached Homes, between the side yard return wall/fence and the sidewalk. (At corner lots, three (3) 24-inch box trees are required.)

All trees are to be approved by the DRC.

2.23.5 Shrubs, groundcover, vines, and turf at conventional Single Family Detached Homes

Removal of shrubs, groundcover, or turf in the Master Association-maintained parkway between the sidewalk and street curb is not permitted. At least 80% of the unpaved ground plane visible to the street in the front yard must be covered with plant material. Large areas of bare earth or rocks are not permitted.

Shrubs should be planted at the base of the house wall, any garden wall, and any fence visible to the street. At corner lots, the area in the side yard between the common area landscape setback and the house wall must be planted with groundcover and shrubs or vines.

All shrubs and groundcover, and vines should be per the approved plant palette, below; and groundcover should be planted at a maximum of 12 inches on center.

2.23.6 Landscaping in yards not visible from streets at conventional detached homes

Except for patio covers and gazebos, the top of all landscape features--such as garden walls, fences, statues, sculpture, waterfalls, fountains, pool houses, and playhouses--must be below the top of the perimeter wall or screened with landscaping approved by the DRC so as to be invisible from streets, parks, greenbelts or other Master Association Property. Play structures may be permitted to exceed the height of the perimeter yard wall, if they comply with the restrictions below.

2.23.7 Garden Walls and Raised Planters at conventional Single Family Detached Homes

In yards at conventional Single Family Detached Homes that are visible from the street, the material, color, and texture of new garden walls and raised planters must be compatible with the walls and architecture of the existing house. Garden walls and raised planters of uncovered concrete block are not permitted.

In yards visible from streets, the maximum height of raised planters is twenty-four (24) inches. Between the sidewalk and the front of the house, the maximum height of garden walls is forty-two (42) inches from finish grade; and the maximum height of pilasters is forty-eight (48) inches from finish grade. In other portions of yards visible from streets, the maximum height of garden walls is sixty-six (66) inches from finish grade.

In other private yards, the height of any new wall must be below the height of existing walls. Vines and hedges are encouraged on all garden walls to soften their appearance. Soil shall not be retained against any existing wall or fence. Four-inch minimum width, waterproof flash walls shall be provided between any new raised planter and any existing wall or fence.

2.23.8 Metal Fences at conventional Single Family Detached Homes

Metal fences in yards at conventional Single Family Detached Homes that are visible from streets must be located behind the front façade of the house and must be simple in design. The color of the fence must be compatible with the house. Vines and hedges are encouraged on all fences to soften their appearance.

In yards visible from streets, the maximum height of fences is five (5) feet, six (6) inches from finish grade. In other private yards, the height of any new fence must be below the height of existing walls.

Solid wood fences and prefabricated trellis garden elements that are visible from streets or Master Association property are not permitted.

Custom-made trellis garden elements that are visible from streets or Master Association property are permitted if they are strongly related to the architectural style of the house.

Fences of chain link, poultry wire, woven wire, aluminum, sheet metal, plastic, fiberglass, reeds, straw, bamboo, rope, and other similar temporary or commercial materials are not permitted.

The preferred metal or wrought iron fence has a horizontal top rail and vertical posts, without excessive decoration.

If the size and configuration of the lot is adequate, vehicular gates across driveways shall be located no closer than 18 feet from the back of the sidewalk to allow for clearance when a car is parked in the driveway.

2.23.9 Outdoor Fireplaces at conventional Single Family Detached Homes

Outdoor fireplaces at conventional Single Family Detached Homes shall be consistent with all applicable governmental codes, including, without limitation, the regulations of the Orange County Fire Authority. Outdoor fireplaces shall be located in rear yards and shall be simple and residential in design. Outdoor fireplaces with highly independent designs, overly ornate designs, or commercial-looking designs are not allowed. Unfinished or painted precision concrete block is not allowed. The color and finish of stucco fireplaces must be the same as the color and finish of the stucco on the house.

If the top of the outdoor fireplace is greater than the top of the perimeter wall or fence, or if the outdoor fireplace is located adjacent to an open view fence, then the outdoor fireplace shall be designed so that its form, material, and color are compatible with the architecture of the house.

Outdoor fireplaces of six (6) feet, or less, in height shall be located a minimum of three (3) feet clear from property lines and perimeter walls, whichever is more restrictive. Outdoor fireplaces between six (6) feet and twelve (12) feet in height shall be located a minimum of five (5) feet clear from property lines and perimeter walls, whichever is more restrictive. Outdoor fireplaces (12) feet in height shall be located a minimum of ten (10) feet clear from property lines and perimeter walls, whichever is more restrictive.

The maximum allowed outdoor fireplace height from the original lot grade is twelve (12) feet; and must be screened from adjacent property with trees and shrubs of an appropriate installation size.

Trees and/or shrubs, with a minimum size of 15-gallon, should be planted in the 3- to 10-foot clear area between the property line (or perimeter wall or fence) and the outdoor fireplace, to completely screen the appearance of the back of the outdoor fireplace from adjacent neighbors.

Outdoor fireplaces should be designed to use natural gas, instead of wood, so that the use does not create a nuisance. Outdoor fireplaces must comply with all applicable Orange County Fire Authority regulations.

2.23.10 Barbeques and Wet Bars at conventional Single Family Detached Homes

Barbeques and wet bars shall be located a minimum of three (3) feet clear from property lines and perimeter walls, whichever is more restrictive; shall be located according to applicable laws and manufacturer's recommendations; and shall only be located in rear yards, or in side yards that are screened from the street. Screening with trees and/or shrubs is also required; and review by the DRC is required.

2.23.11 Play Structures at conventional Single Family Detached Homes

No play structure should be installed without approval by the DRC.

Play structures, such as, but not limited to, swing sets, jungle gyms, and slides, shall be located a minimum of five (5) feet clear from patio walls and fences, or according to applicable laws and manufacturer's recommendations, whichever is greater.

Play structures shall be a maximum of ten (10) feet high from the grade to the highest point.

If the top of the play structure is greater than the top of the perimeter wall or fence, or if the play structure is located adjacent to an open view fence, then the following standards apply:

The area between the play structure and the wall/fence shall be landscaped with trees and/or shrubs so that the appearance of the play structure is screened from any street, common area, adjoining lot, or other off-site view.

The color of the play structure should be compatible with the color of the house, rather than being a redwood or brightly-colored play structure.

Play structures should not be roofed because the roofs are not compatible with the architecture.

A dimensioned color photograph or a manufacturer's catalog illustration shall be submitted to the DRC with the plans and specifications for the proposed improvement.

Additional landscape screening of play structures may be required on a case-by-case basis to ensure that the play structures are screened from off-site views.

All play structures will be reviewed on a case-by-case basis.

2.23.12 Sport Courts at conventional Single Family Detached Homes

Sport courts, such as, but not limited to, basketball courts and tennis courts shall be located a minimum of five (5) feet clear from property lines or perimeter walls whichever is more restrictive; and the area between the sport court and the property line shall be landscaped with trees and/or shrubs so that the sport court is not unreasonably visible from streets, parks, greenbelts or adjacent homes. Exterior lighting of the sport court is not permitted. Fencing greater than 6 feet high is not permitted.

2.23.13 Water Features at conventional Single Family Detached Homes

Water features that are greater than 30 inches above grade of the ground floor level, such as, but not limited to, reflecting pools, ponds, and fountains, are only allowed in front yards if they are strongly related to the architectural style of the house; and if they are approved by the DRC.

Spas, hot tubs, swimming pools, and similar water features are permitted only in private yards not visible from the street. Rock formation features associated with pools and spas shall not exceed the perimeter wall/fence height. Water features and associated hardscape shall be screened from adjacent common areas and homes with landscaping.

The Water Feature must not damage existing walls or fences. All equipment shall be completely screened from view from streets, parks, greenbelts, or adjacent homes. Noise must be controlled to minimize the impact on neighbors.

All pumps and ground-mounted solar collectors must be designed and located to be unobtrusive, in accordance with the requirements of the Master Declaration. Profiles must be minimized. Colors must be compatible with the house. All supports and piping must be enclosed. All roof-mounted solar collectors must comply with the requirements of these Design Guidelines.

Construction of the Water Feature must not disturb neighbors' yards or property owned and/or maintained by the Master Association.

2.23.14 Drainage at conventional Single Family Detached Homes

The drainage pattern established with the original grading of the Lot must be maintained. No drainage will be permitted onto common area slopes, landscaping, or adjacent lots. All new drain lines must connect to existing drain lines or inlets provided by the builder.

2.23.15 Loudspeakers at conventional Single Family Detached Homes

Loudspeakers are not permitted in front yards. Loudspeakers in rear and side yards must be located behind the fence or wall at the property line; and must not be mounted higher than six (6) feet above grade. They must not be mounted on patio covers or gazebos.

2.23.16 Use of Neighbor's Yard at conventional Single-Family Detached Homes

The use of a neighbor's yard for construction access is not permitted unless the neighbor has given written consent. The use of property owned and/or maintained by the Master Association for construction access is not permitted, unless the applicant signs an indemnification for damage and posts a construction deposit in an amount determined by the DRC, for repair of damage to property owned and/or maintained by the Master Association.

2.23.17 SYNTHETIC TURF GUIDELINES

Due to restrictions/reductions by various government entities on the use of one of our most precious natural resources, water, the Board of Directors has decided to provide this bid specification for the installation of synthetic turf. Our desire is to give a variety of choices while limiting materials to the best and most natural-looking. It is not in our Members' best interests to see their property values diminished due to the use of inferior materials.

If a homeowner chooses to use synthetic turf, the product must meet these minimum standards (a sample of the product with written specs must also be submitted with the Application for Architectural Review before installation):

REQUIREMENTS FOR INSTALLATION

- Turf must be natural in appearance, olive or darker color preferred
- Pile height must be at least one and one-half inches (1 ½") to two inches (2")
- Pile weight-40-60 ounces minimum
- Turf must have a minimum of an eight (8)-year product warranty
- Turf must have a minimum one (1)-year installation/workmanship warranty
- Turf must have UV protection
- Turf must provide adequate drainage
- Turf cannot be placed directly on top of existing grass, dirt or Hardscape
- Turf must be adequately secured (no ripples or seams showing)
- Turf edges must be finished
- Turf must have prepared base of infill
- Turf must not have felt backing
- Turf product must have thatch

Front-yard areas must retain a minimum of 30% of overall square footage as organic plant material, such as planter beds, bushes, shrubs, etc. This must be documented in the Request for Design Review application.

Planters with organic plants and shrubs must border a minimum of 30% of the perimeter of any single turf area (50% or more is preferred and is more aesthetically pleasing). This must also be documented in the Request for Architectural Improvement application.

If a synthetic turf area will meet a neighboring natural turf area, it must be separated with a barrier of at least four (4) four inches of hard-scape or a planter containing organic plant material.

Synthetic turf may be installed either (i) by a licensed and insured contractor expert in the installation of synthetic turf who shall be specifically identified in the Request for Architectural Improvement application submitted to the Association; or (ii) by the homeowner, in which event the installation shall be inspected, at the homeowner's expense, by the Association's landscape architect, who shall have sole discretion in determining whether the installation meets the standards of an expert installation of synthetic turf.

Synthetic turf must include a weed barrier and a properly prepared aggregate base for drainage.

Only turf requiring infill installation will be allowed. Infill material installation shall be according to turf manufacturer specifications or based upon standard industry guidelines (see below).

REQUIRED MAINTENANCE

Infill must be recharged or replaced if odor or deterioration occur.

Turf must be cleaned, and the pile must be raked/fluffed periodically to maintain its appearance.

When artificial turf reaches the end of its lifespan and no longer appears natural in color and appearance, or has suffered irreparable damage or wear, the turf must be replaced.

SYNTHETIC GRASS - INSTALLATION GUIDELINES

1. Primary layer on native soil: non-woven, highly-permeable soil stabilizing fabric for the soil type and conditions of the installation. Fabrics must be porous and must not impede infiltration of normal watershed to appropriate drainage solutions required of property by any other related section of the CC&Rs.
2. Minimum three inches (3") to five inches (5") of appropriate compactable aggregate base with subsequent or additional imported base materials and fabric layers, as required.
3. Acceptable artificial turf includes an eight (8)- year (PE & PP) manufacturer warranty against UV degradation (i.e., fading and discoloration). The style and color selection must compliment other adjacent, natural lawn and landscaped grass within the Community.
4. Acceptable backing materials include perforated, vertically-draining, latex- or polyurethane-coated materials to provide optimum tuft bind and maximum permeability. Horizontally\draining backings must not be infilled; infill materials are prone to migrate into drainage systems.
5. Acceptable infill materials will include, but are not limited to: recycled rubber crumb, acrylic-coated silica sand, recycled PET beadlets, thermo-plastic elastomer-coated silica sand and semi-round silica sand. Sub-angular silica sand may not be used as infill materials.
6. All materials submitted for approval must be accompanied by test documentation, which declares that the artificial turf yarn and backing materials are disposable, under normal conditions, at any US landfill station (Total Content Leach Protocol ("TCLP") test).
7. Infill materials, type and amount, per square foot, installed, as suggested by the turf manufacturer or based upon standard industry guidelines.
8. Surfaces must appear seamless, and edges must appear natural and well- groomed.

9. Total surface installation must be water-permeable with minimum twenty-five (25)-inch/Hour Permeability Rating; and
10. All job materials used for surfaces must pass applicable fire retardancy ratings, including pill burn test.

SUBMITTING A PLAN

All installations must be approved by the Design Review Committee, and submissions must include the following materials and information:

1. Completed Application including plot plan
2. A description of the Artificial Turf System that will be used, including specific information on:
 - a. Artificial Grass Surface, including validation of total lead (“Pb”) content in yarn fibers.
 - b. Definition of type and depth of aggregate base materials and site construction plan.
 - c. Definition of soil-stabilizing fabric, including permeability specification sheet and a Material Safety Data Sheet (“MSDS”).
 - d. Definition of infill materials, including specification sheet and a MSDS.
 - e. Definition of seaming materials and adhesives, including specification sheet and a MSDS; and
 - f. Copy of manufacturer’s warranty for all materials, workmanship and builder’s warranty statement for workmanship for construction (California contractors are required to provide a minimum of one (1) year workmanship warranty).
3. A description and proposed plan for drainage of the affected area, including materials lists and site plan.
4. A minimum twelve inch by twelve-inch (12”x12”) sample of the exact artificial turf or synthetic grass surface materials to be used. Substitutions are not allowed without prior approval.

2.24 Preferred Plant Palettes

The landscape character at Woodbury will provide a rich tapestry of distinctive landscape characters that permeate throughout each neighborhood. The four distinct architectural characters are reinforced with the specific landscape palettes provided below. The intent of these preferred palettes is to provide a different landscape character for each neighborhood; and all plant material on this list is pre-approved relative to the architectural style.

Landscape designs that support the neighborhood character will be approved. Landscape designs that do not support the neighborhood character may be denied.

The trees, shrubs, vines, and groundcovers on the following list are preferred based on the style of your home and neighborhood location. Individual yards have unique characteristics, such as the amount of sunlight they receive. Therefore, some of these plants may be inappropriate for use in some private yards or in some locations. All plant materials need to be verified with the individual soil suitability and solar aspect of each home.

Professional advice should be followed when selecting plants.

In locations where the rear yards are less than 15 feet deep, only plants from the small rear yard palette are permitted.

Attached Homes, Detached Condominiums, and conventional Single Family Detached Homes in the Cottage neighborhoods are encouraged to use plants from the Cottage plant list.

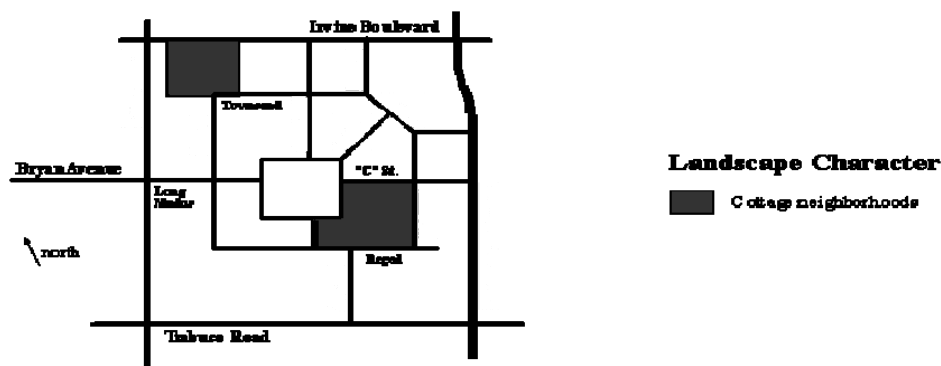
Attached Homes, Detached Condominiums, and conventional Single Family Detached Homes in the Formal French / Formal Italian neighborhoods are encouraged to use plants from the Formal French / Formal Italian plant list.

Attached Homes, Detached Condominiums, and conventional Single Family Detached Homes in the Monterey / Santa Barbara / Spanish Colonial Revival neighborhoods are encouraged to use plants from the Monterey / Santa Barbara / Spanish Colonial Revival plant list.

And, Attached Homes, Detached Condominiums, and conventional Single Family Detached Homes in the Provence / Tuscan neighborhoods are encouraged to use plants from the Provence / Tuscan plant list.

PEFFERED PLANT LIST

Cottage neighborhoods



TREES

No palms
Acacia melanoxylon
Agonis flexuosa
Bauhinia species
Catalpa species
Citrus species
Eucalyptus species
Hymenosporum flavum
Jacaranda acutifolia
Koelreuteria bipinnata
Liquidambar styraciflua
Pinus canariensis
Pinus halepensis
Pistachia chinensis
Pittosporum undulatum
Podocarpus gracilior
Pyrus calleryana
Rhus lancea
Tristania conferta
Ulmus parvifolia

TALL SHRUBS

No palms
Alyogyne huegelii
Callistemon species
Camellia species

Citrus species
Dracaena draco
Eriobotrya deflexa
Hibiscus rosa-sinensis
Juniperus species
Mahonia species
Nerium oleander
Podocarpus macrophylla
Prunus species
Syzygium paniculatum
Viburnum species
Xylosma congestum

SHRUBS

No palms
Abelia grandiflora
Azalea species
Brugmansia species
Buxus species
Carissa species
Dietes species
Gardenia species
Hemerocallis hybrids
Hydrangea macrophylla
Murraya paniculata

Phormium tenax+ cultivars
Photinia fraseri
Pittosporum species
Plumeria rubra
Raphiolepis indica
Rosa floribunda
Rosa hybrid teas
Santolina virens
Sarcococca rusifolia
Xylosma species

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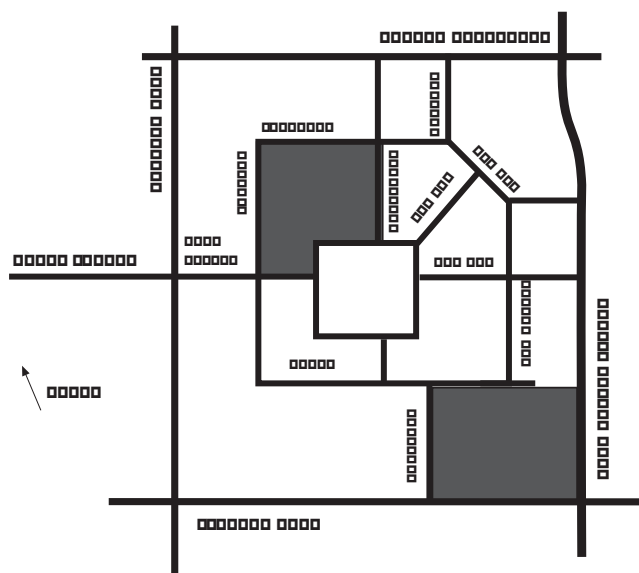
GROUNDCOVERS

VINES

Achillea species
Allium species
Aptenia species
Aucuba japonica
Bergenia crassifolia
Hedera helix
Helianthemum hybrids
Hemerocallis hybrids
Hemerocallis hybrids
Heuchera maxima
Iberis sempervirens
Liriope species
Lonicera japonica
Ornamental grasses
Pelargonium species
Pennisetum species
Rosmarinus officianalis
Rosa banksiae
Senecio cineraria
Trachelospermum species
Vinca species
Wisteria species

PREFERRED PLANT LIST

Formal French / Formal Italian neighborhoods



TREES

No palms, except
Phoenix dactylifera 'Medjole'
used as accents
Acer palmatum
Alnus cordata
Calocedrus decurrens
Cinnamomum camphora
Cupressus leylandii
Cupressus sempervirens
Elaeocarpus decipiens
Fagus sylvatica
Ficus nitida 'Green Gem'
Ficus rubiginosa
Ilex species
Lagerstroemia indica
Lauris nobilis
Liquidambar styraciflua
Magnolia species
Pinus canariensis
Pinus halepensis
Pinus pinea
Platanus acerifolia
Tristania conferta
X Chitalpa tashkentensis

TALL SHRUBS

Buxus species
Camellia species
Citrus species

Eriobotrya deflexa
Ilex species
Juniperus species
Ligustrum species
Nerium oleander
Pittosporum species
Prunus caroliniana 'compacta'
Prunus species
Rhamnus alaternus
Taxus baccata
Viburnum species

LOW SHRUBS

Azalea species
Buxus species
Camellia species
Carissa species
Cocculus laurifolius
Coprosma repens
Eleagnus species
Gardenia j. 'veichii'
Hakea suaveolens
Hydrangea species
Juniperus species
Ligustrum species
Mahonia species
Myrtus communis
Pelargonium species
Photinia fraseri
Pyracantha species

Rosa floribunda
Taxus species
Santolina virens

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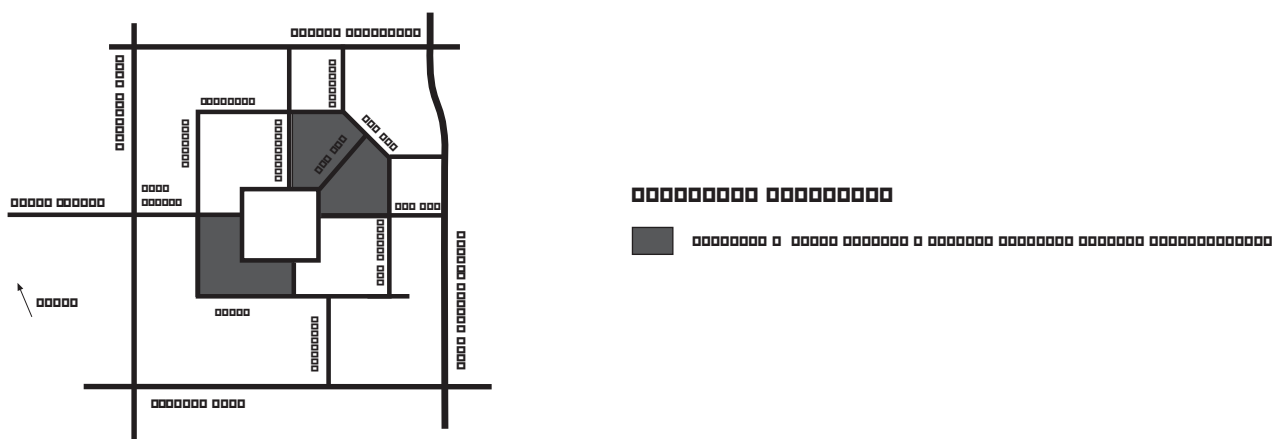
GROUNDCOVERS

VINES

Acanthus mollis
Agapanthus species
Alyssum species
Asparagus d. 'Sprengeri'
Begonia species
Carissa g. "Prostrata"
Cerastium tomentosum
Cyclamen species
Daphne species
Festuca ovina glauca
Hemerocallis hybrids
Impatiens wallerana
Iris species
Jasminum species
Liriope species
Ophiopogon japonicus
Potentilla species
Primula polyantha
Rosa banksiae
Scaveola species
Senecio species
Trachelospermum species
Vinca species

PREFERRED PLANT LIST

Monterey / Santa Barbara / Spanish Colonial Revival neighborhoods



TREES

Acacia species
Agonis flexuosa
Arbutus species
Brahea armata
Eucalyptus species
Geijera parviflora
Lauris noblis
Leptospermum species
Melaleuca species
Olea europaea
Phoenix dactylifera
used as accents
Syagrus romanzoffianum
used as accents
Tristania conferta
Washingtonia robusta
used as accents
X Chitalpa tashkentensis

TALL SHRUBS

Aloe arborescens
Aloe bainesii
Arbutus unedo
Ceanothus species
Chamerops humilis
Citrus species
Cordyline species
Cotoneaster species
Dicksonia antarctica

Dodonea viscosa
Dracaena draco
Eriobotrya species
Feijoa sellowiana
Leptospermum species
Melaleuca nesophila
Photinia species
Pittosporum species
Strelitzia nicolai

SHRUBS

Arctostaphylos species
Artemisia species
Baccharis species
Calliandra species
Ceanothus species
Cistus species
Cotoneaster species
Echium fastuosa
Elaeagnus species
Erigeron karvinskianus
Grevillea species
Kniphofia uvaria
Lavatera species
Myoporum species
Strelitzia reginae
Tibouchina urvilleana
Westringia fruticosa
Woodwardia fimbriata

ACCENTS

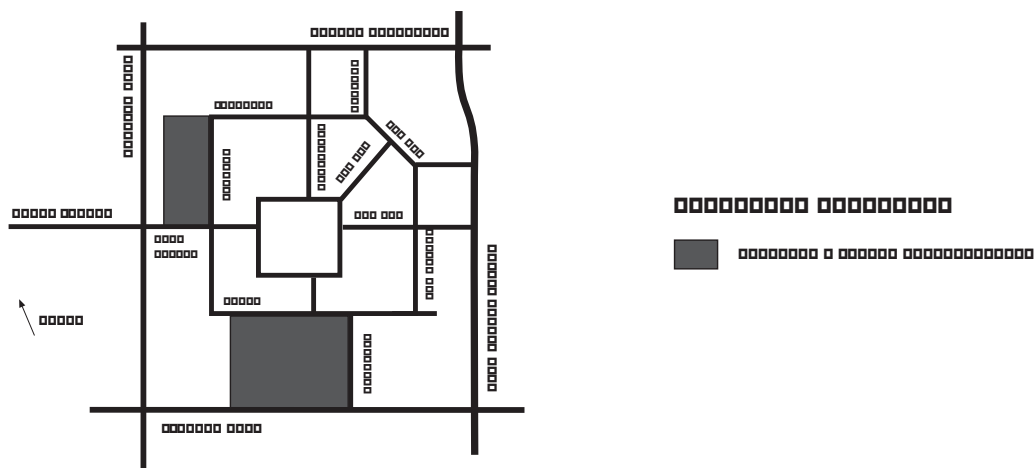
GROUNDCOVERS

VINES

Agave species
Aloe hybrids
Baccharis pilularis
Bougainvillea species
Cerastium tomentosum
Colocasia esculenta
Cotoneaster horizontalis
Cyperus papyrus
Distictus buccinatoria
Festuca ovina glauca
Hesperaloe parviflora
Jasminum polyanthemum
Kniphofia uvaria
Limonium perezii
Liriope species
Lonicera japonica
Myoporum pacificum
Ornamental grasses
Passiflora species
Ribes viburnifolium
Salvia species
Sedum species
Senecio species
Wisteria floribunda
Yucca species

PREFERRED PLANT LIST

Provence / Tuscan neighborhoods



TREES

Acacia melanoxylon
Agonis flexuosa
Arbutus marina
Arbutus unedo
Callistemon viminalis
Cupressus sempervirens
Lauris nobilis
Olea europaea
Pinus canariensis
Pinus halepensis
Pinus pinea
Platanus species
Quercus species
Rhus lancea
Tristania conferta
Vitus unguis-castus

TALL SHRUBS

Aloe bainesii
Callistemon species
Citrus species
Cupressus species
Dodonea viscosa
Dracaena draco
Eriobotrya deflexa
Heteromeles arbutifolia
Juniperus species
Ligustrum japonicum

Magnolia g. 'little gem'
Nerium oleander
Pittosporum species
Plumbago capensis
Prunus caroliniana 'compacta'
Punica granatum
Trachycarpus fortunei
Viburnum species

SHRUBS

Buxus species
Dianthus species
Diets species
Echium fastuosa
Helianthus annuus
Lavendula species
Mahonia aquifolium
Nerium oleander
Osmanthus fragrans
Pelargonium species
Rosa floribunda / hybrid teas
Rosmarinus officinalis
Salvia species
Santolina species
Thymus vulgaris
Viburnum species
Westringia fruticosa

ACCENTS

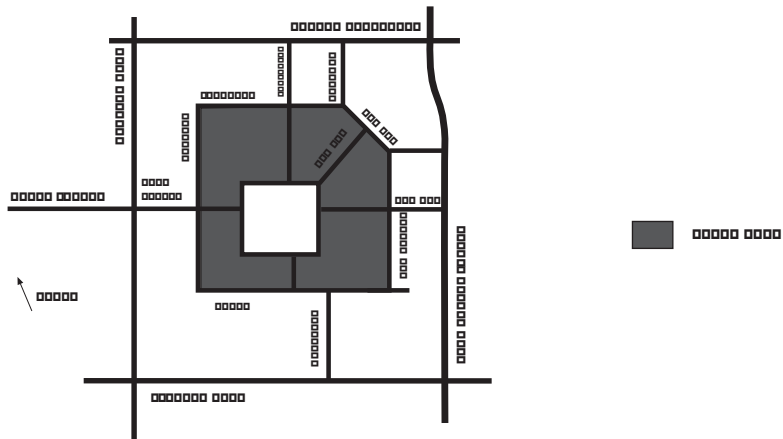
GROUNDCOVERS

VINES

Acanthus mollis
Agave species
Aloe species
Anigozanthos hybrids
Chamerops humilis
Cissus rhombifolia
Cistus species
Coreopsis species
Echeveria species
Euphorbia species
Hypericum calycinum
Iris douglasiana
Pelargonium species
Pyracantha species
Ribes species
Rosa banksiae
Rosmarinus officinalis
Senecio cineraria
Tecomaria capensis
Vitus species

SMALL REAR YARD TREE LIST

Required at neighborhoods within Inner Loop



- | | |
|-----------------------------------|--|
| Agonis flexuosa | Maytenus boaria |
| Arbutus marina | Melaleuca leucadendra |
| Arbutus unedo | Metrosideros excelsus |
| Bauhinia blakeana | Michelia doltsopa |
| Bauhinia variegata | Pinus canariensis |
| Brachychiton discolor | Pittosporum crassifolium |
| Brahea armata | Pittosporum viridiflorum |
| Cupaniopsis anacardioides | Podocarpus gracilior |
| Cupressus sempervirens | Pyrus calleryana 'Aristocrat' |
| Elaeocarpus decipiens | Pyrus calleryana 'Bradford' |
| Eriobotrya deflexa | Rhaphiolepis 'Majestic Beauty 'Standard' |
| Eucalyptus leucoxyton | Rhus lancea |
| Eucalyptus torquata | Strelitzia nicolai |
| Feijoa sellowiana | Tristania conferta |
| Gleditsia tricanthos 'Skyline' | Tristania laurina |
| Koelreuteria bipinnata | X Chitalpa tashkentensis |
| Lagerstroemia hybrids | |
| Laurus nobilis | |
| Ligustrum japonicum | |
| Ligustrum lucidum | |
| Liquidambar styraciflua hybrids | |
| Magnolia grandiflora 'Little Gem' | |
| Magnolia grandiflora 'Russet' | |
| Magnolia grandiflora 'St. M | |

3.00 Review and Approval Process

3.10 General Rules

- 3.11 Construction of any improvement, including landscaping, may not begin until the DRC has approved plans and specifications depicting the proposed improvement. **Yards must be completely landscaped within 270 calendar days from close of escrow.**

- 3.12 No plan reviews shall be conducted until escrow has closed

The DRC has established a non-refundable design review fee to review submittals; and a security deposit, to be refunded after the Notice of Completion is approved by the DRC. The current review fee is \$125.00. The fee may be adjusted from time to time. The current security deposit is \$500.00; and the current security.

The security deposit must accompany every submittal. The purpose of the deposit is to ensure the timely completion of the proposed improvements and to guarantee that the Master Association is reimbursed for any damage to the Master Association property associated with an Applicant's construction. Funds may be withheld from deposits for any of the following reasons: 1) to repair common area damaged during a Member's construction; or 2) to pay fines assessed against a Member's account levied in response to a violation of the Master Declaration.

If a home is subject to a Sub-Association, then the plans, specifications, and forms should be sent to Sub-Association's property management company.

If a home is not subject to a Sub-Association, then the plans, specifications, and forms should be sent to Master Association's property management company.

- 3.13 The DRC has forty-five (45) days from the receipt of the submittal of a **'complete'** (as determined by the DRC) submittal package, to approve or deny the submittal. The applicant **must** obtain a dated written receipt for all plans and specifications submitted. Incomplete submittals will be denied. If the DRC fails to transmit its decision within forty-five (45) days after receipt of a **complete** submittal package, then the submittal will be deemed approved. The DRC may deny a complete submittal for reasons set forth in the Master Declaration.
- 3.14 After DRC review, the design may need to be approved by the City of Irvine. If the City requires the DRC-approved design to be changed, then the change needs to be approved by the DRC prior to the commencement of construction.
- 3.15 When construction is completed, a "Notice of Completion" and photographs of the completed improvements must be delivered to the DRC, for its use in determining if the improvements were constructed according to the approved plans and specifications; and for refunding any construction deposit required by the DRC. A representative of the DRC may also inspect the improvement. An appointment will be made at a convenient time for the homeowner to inspect the completed improvements.
- 3.16 Construction must not unreasonably disturb neighbors. The use of a neighbor's yard for construction access is not permitted unless the neighbor has given written consent that must include a description of the access area. The use of property owned and/or maintained by the Master Association or Sub Association for construction access is not permitted, unless authorized by the responsible Association and the applicant signs an indemnification for damage and posts a construction deposit for repairs of damage to property owned and/or maintained by the Master Association. Any authorization for construction access by the Master Association or Sub Association must be in writing and must include a specific description of the access area.

- 3.17 Approval of improvements by the DRC is for aesthetic purposes only. It is the applicant's responsibility to see that all federal, state, and local ordinance and building codes are followed. It is the applicant's sole responsibility to obtain all permits and inspections that may be required by a public agency before commencing construction.
- 3.18 The DRC's approval of plans and specifications refers to conformance with the Master Declaration and these Guidelines. By approving the plans and specifications, neither the DRC, any members thereof, the Master Association, the Members, the Board of Directors, designated representatives, agents, Irvine Community Development Company, The Irvine Company, nor the Merchant Builder assumes liability or responsibility therefor, including without limitation architectural or engineering design, or for any defect in any structure constructed from such plans and specifications.

3.20 Process/Submittal Requirements

Step 1

Applicant reviews the Design Guidelines and prepares plans and specifications, including without limitation, elevations and cross-sections depicting the proposed new improvements showing:

- Owner's name, date, address and lot number of residence, north arrow, scale of plans (1/8" = 1'-0" or 1/4" = 1'-0"), notes in English
- Designer / contractor's name, address, and phone numbers
- Designer / contractor's signature confirming that they have read the Design Guidelines; and understand the requirements
- A dimensioned hardscape plan accurately describing the materials, length, height, and angles of new and existing improvements including, but not limited to, patio paving, sidewalks, walls, fences, pools, spas, ponds, trellises, arbors, gazebos, fountains, waterfalls, ornamental rocks, outdoor fireplaces, barbecues, wet bars, play structures, exterior lighting, patio covers, drainage, and structures; the length, angles, and amount of curve of lot lines; and all required minimum setback lines, easements, grade elevations, drainage pattern, and the top and toe of slopes.
- An accurate grading plan prepared by a registered civil engineer or licensed landscape architect showing existing drainage, contours or spot elevations, flow lines, finish grades, and proposed drainage systems, if the existing grades are proposed to be changed by more than twelve (12) inches. (The approval of plans that do not indicate grading modifications does not constitute approval of any grading changes.)
- A dimensioned planting plan showing new and existing plants accurately described as to plant type, container size, location, and planting details and methods.
- A dimensioned roof plan for room additions showing new and existing roofs accurately described as to material, slope, and drainage.
- Dimensioned floor plans for room additions showing new and existing rooms accurately described as to wall locations, columns, doors, windows, and other features that impact the exterior of the house.
- Dimensioned elevations for room additions showing new and existing walls accurately described as to materials, colors, doors, windows, and other features that impact the exterior of the house.
- Photographs and dimensioned details as needed to describe the improvements, including a cross-section of any patio cover, notes for play structures, and a photograph of any light fixture specifying the height, material, color, and appearance.

- Photographs of front and rear elevations of house; and photographs of houses across the street and adjacent, if the existing house color is proposed to be changed.

For major improvements, such as, but not limited to, room additions, preliminary plans and specifications should be submitted prior to preparation of construction documents.

The applicant understands that the speed of DRC approval is based on the amount of information given on the plans and specifications. Inadequate information will cause the Committee to deny the application.

Step 2

Applicant completes Property Improvement Form. (Exhibit A)

Step 3

Applicant submits the design review fee, the security deposit, the completed Property Improvement Form, and three (3) sets of plans and specifications to the “Woodbury Community Association” in care of the property management company:

No reviews shall be conducted until escrow has closed.

Step 4

DRC reviews the Property Improvement Form and the plans and specifications for completeness and consistency with the Guidelines. Incomplete submittals are rejected; and submittals without fees or deposits are rejected.

The DRC approves or denies the submittal. Approval may be given with conditions including without limitation a construction deposit.

If the approval is of preliminary plans and specifications, then the Applicant must prepare final construction documents, for review and approval by the Committee.

Step 5

Applicant reviews the Committee’s comments and notifies the Committee if there are any questions.

Step 6

If the Committee has granted final approval and the Applicant understands the Committee’s comments, Applicant submits the approved plans and specifications to the City for approval, if required, and obtains any necessary permits. Construction must begin within one hundred eighty (180) days after approval by the DRC. Unless otherwise required by the DRC, building construction must be completed within one (1) year after approval of the DRC. **Yards must be completely landscaped within 270 days from close of escrow.**

Step 7

Construction must proceed consistent with the approved plans and specifications. All deviations must be reviewed and approved in writing by the Committee.

Step 8

Within thirty (30) days after construction is completed, the Applicant submits a Notice of Completion and photographs of the completed improvements to the DRC. (Exhibit C)

Step 9

Committee may visit the site within sixty (60) days after receiving the Notice of Completion and determines if the improvements were constructed according to the approved plans and specifications; and then refunds the construction deposit, minus any costs to repair property owned and/or maintained by the Master Association. Failure to obtain DRC approval constitutes a violation of the Master Declaration and may require the unauthorized improvement to be removed at the owner’s expense.

3.30 Conditions of Approval

The following conditions shall be the conditions of any DRC approval. They shall be deemed incorporated by reference in all plans and specifications or the DRC's approvals. The Applicant shall have the responsibility to ensure that these conditions of approval are enforced upon all persons or firms engaged by the Applicant to construct and/or install the approved improvements.

3.31 Completion of Landscaping

Landscaping, including paving, shall be installed for any lot or dwelling unit within two hundred seventy (270) days following the conveyance of the lot or dwelling unit to the first owner thereof.

3.32 Signs

Only signs that comply with the Irvine zoning code are permitted.

3.33 Hours of Operation

Construction is only permitted between the following hours:

Monday through Saturday	Between 7:00 a.m. and 6:00 p.m. (or dusk)
Sunday and Federal Holidays	No work permitted.

If current City regulations are more restrictive, they shall prevail.

3.34 Temporary Structures

Temporary structures are not permitted unless approved in writing by the Master Association Board of Directors.

3.35 Unsightly Items

Rubbish, debris and unsightly material or objects shall not be stored or permitted to accumulate on streets, sidewalks, or on any Master Association or any Sub Association Property (including, but not limited to, any private street).

Each week, each owner of a Lot or Condominium shall remove all rubbish, debris and unsightly material on his Lot or Condominium.

The owner is financially responsible for any trash cleanup work the Master Association or Sub Association deems necessary to comply with this restriction.

3.36 Building Materials

Building materials, including sand and bricks, shall not be stored on streets, sidewalks or any other Master Association Property. All building materials must be stored on the applicant's property.

The Applicant is financially responsible for any cleanup and repair work the Master Association deems needed to comply with this restriction.

3.37 Construction Equipment

Trash bins and dumpsters may not be placed on streets or other areas of the Community that are exposed to the public view for more than four (4) consecutive calendar days unless otherwise approved in writing by the DRC. "Prohibited Vehicles," as described in the Master Declaration, (including, without limitation, trucks, concrete mixers, trailers, compressors, and other similar types of construction equipment), are not allowed in any driveway or other exposed areas or any street except for the purposes of loading, unloading and making deliveries or emergency repairs, unless otherwise approved in writing by the DRC. Overnight parking of trucks is not allowed.

The owner is financially responsible for any equipment removal and repairs the Master Association deems necessary to comply with this restriction.

3.38 Water Run-off during Construction

The owner and his agents shall comply with all regulations regarding water quality.

3.39 Drainage

Proper drainage is required at all times. Unless adequate alternative provisions are made for drainage, the original drainage system on the applicant's property shall be left undisturbed. This includes gutters, downspouts, underground drains, and swales.

3.40 Workmanship

The quality of new improvements shall match the quality of existing improvements. The DRC may require the applicant to rebuild improvements that are of substandard workmanship. The owner is financially responsible for any rework the Master Association deems necessary to comply with this restriction.

3.41 Enforcement

The quality of new improvements shall match the quality of existing improvements. The DRC may require the applicant to rebuild improvements that are of substandard workmanship. The owner is financially responsible for any rework the Master Association deems necessary to comply with this restriction.

3.42 Violations

Owners shall have the right and responsibility to notify the DRC of any potential violation of the Master Declaration and these Guidelines.

3.43 Amendments

These Guidelines (and the provisions set forth in the Master Declaration regarding design review) form the criteria for evaluation of plans and specifications submitted for review and approval by the DRC. These Guidelines may be amended or supplemented from time to time, as provided for in the Master Declaration.

3.44 Maintenance of Improvements

The repair and maintenance of any improvement shall be the responsibility of the installing owner or subsequent owners.

3.45 Conditions Not Covered

Any condition not covered in these Guidelines or the Master Declaration shall become a matter of discretionary judgment on the part of the DRC, acting in good faith on behalf of the best interest of the Master Association and Community, as a whole. If there is any conflict between the provisions of these Guidelines and the Master Declaration, the provisions of the Master Declaration shall control.

Exhibit A

PROPERTY IMPROVEMENT FORM

Today's Date: _____ Address where work will take place: _____

Applicant's Name: _____ Signature: _____

Mailing Address: _____

Daytime Phone: _____ Email: _____

Type of Work: _____
(Please circle one or more)

Room addition	Front yard	Fence/Wall	Spa
Patio cover or gazebo	Rear yard	Lighting	BBQ
Solar	Other: _____		

Please email one set of plans and specifications, including elevations and cross-sections as needed to describe the project. Include the date and the property address on each sheet.

DEPOSITS – Collected at the time of plan submission. A check made payable to the “Woodbury Community Association” is required.

_____ \$500.00 – Improvement Security Deposit (covers non-compliance or damages incurred). Deposit not required for solar.

SUBMITTAL FEES – Collected at the time of plan submission. A check made payable to the “Woodbury Community Association” is required.

_____ \$125.00 – Single Family Detached Homes – General Review Fee: covers all types of work (landscape, hardscape, solar, etc.). Any additional items needing review for the same project will require payment of an additional \$125.00 review fee.

Email this Property Improvement Form and the plans to nlozano@keystonepacific.com. The deposit and submittal fees can be paid at kppm.cincwebaxis.com under Account Info/Architectural, or you may mail or drop off the checks to Woodbury Community Association, c/o Keystone Pacific, at 108 Lamplighter, Irvine, CA 92620. (If an online payment is made, there will be a 3.25% processing fee).

Please do not write below this line.

The proposed _____ project has been Approved Denied

Signed: _____ of the DRC Date: _____

General Conditions

1. DRC approval does not waive or constitute or reflect compliance with any federal, state, or local law, ordinance, or code.
2. DRC approval does not constitute acceptance of any technical or engineering specification; and the Master Association assumes no responsibility for such. The property owner is responsible for all technical and engineering specifications. The DRC reviews for aesthetic purposes only.
3. Landscaping for any residential Lot or dwelling unit shall be installed in all yard areas within two hundred seventy (270) days following the conveyance of the Lot to the first owner thereof.
4. Any oversight of a provision of the Master Declaration, or a provision in the Design Guidelines, does not waive the rule. Corrections may be required. Only improvements depicted on the plans can be reviewed by the DRC. The Owner is responsible to ensure all improvements are depicted on the plans submitted. Any improvements not depicted on the plans are not approved.

5. The use of a neighbor's yard for construction access is not permitted unless the neighbor has given written consent that includes a description of the access area. The use of property owned and/or maintained by the Master Association and/or Sub Association for construction access or storage is not permitted, unless authorized in writing by the Master Association and/or Sub Association and the Applicant signs an indemnification for damage and posts a construction deposit for repairs of damage to property owned and/or maintained by the Master Association.
6. Building materials may not be stored on streets, sidewalks, or on property owned and/or maintained by the Master Association and/or Sub Association. Streets may not be obstructed by construction equipment.
7. The property owner is financially responsible for any repairs to property owned and/or maintained by the Master Association and/or Sub Association damaged by a property owner's project.
8. Approval of plans and specifications is not authorization to proceed with improvements on any property other than the property reviewed by the DRC and owned by the applicant.
9. Approval of plans and specifications is not authorization to revise the original drainage system installed by the Merchant Builder and approved by the City.
10. Applicant understands and agrees that Applicant must comply with all of the provisions of the Design Guidelines.
11. All of the provisions of the Design Guidelines (including, but not limited to, the Conditions of Approval) are the provisions of the Master Declaration regarding Design Review; and are incorporated herein by this reference. The applicant has read and understands all provisions and agrees to comply therewith.
12. In the event that the City and/or County require modifications to the plans and specifications previously approved by the DRC, the Owner shall submit to the DRC all modifications to the plans. The DRC shall have the right to review and impose further conditions on such modifications which are not inconsistent with the requirements imposed by the City and/or County. The DRC shall have the right to impose conditions of approval of proposed Improvements which are more restrictive than conditions as may be imposed by the City and/or County.

The approval shall not be held to permit any violation of federal, state, or local regulation.

Owner's Signature

Exhibit B

NOTICE OF COMPLETION FORM

Today's Date: _____ Address where work took place: _____

Property Owner's Name: _____ Signature: _____

Mailing Address: _____

Daytime Phone: _____ Email: _____

Type of Work (Please circle all that apply):

Room addition

Front yard

Fence/Wall

Spa

Patio cover or gazebo

Rear yard

Lighting

BBQ

Other _____

Please mail this completed form to Woodbury Community Association, c/o Keystone Pacific, 108 Lamplighter, CA 92620. Please note that you must include photos of ALL of the completed work, including the front yard, rear yard and both side yards. Please be sure photographs demonstrate that the setback requirements for trees and specific structures have been met (i.e. pilasters, garden walls, barbecues, fireplaces, etc.).

Notice is hereby given that the undersigned is the owner of the property where the work took place, that photographs of the completed work are attached, and that the work was completed on the date specified below. Please make sure photographs show all angles of the landscaped areas, including photos that clearly show setbacks of larger trees from property lines if installed during the project:

Date work was completed: _____

Property Owner's Signature: _____

Today's Date: _____

FOR DESIGN REVIEW COMMITTEE USE ONLY:

Signed _____ Date _____

The following action is required for the Notice of Completion to be approved by the Design Review Committee:

Exhibit C

PROPERTY IMPROVEMENT FORM – ARTIFICIAL TURF

Today's Date: _____ Address where work will take place: _____

Applicant's Name: _____ Signature: _____

Mailing Address: _____

Daytime Phone: _____ Email: _____

SUBMITTAL FEES – Collected at the time of plan submission. A check made payable to the “Woodbury Community Association” is required.

_____ \$125.00 – Front and/or Back Yard

Sample Attached

Please include the completed application including plot plan, a check for the review fee, and one set of plans and specifications, including elevations and cross-sections as needed to describe the project. Include a description and proposed plan for drainage of the affected area, including materials lists and site plan.

Include a minimum twelve inch by twelve-inch (12”x12”) sample of the exact artificial turf or synthetic grass surface materials to be used. Substitutions are not allowed without prior approval.

Drop off or mail this Property Improvement Form, the plans, sample of the turf, and the check to Woodbury Community Association, c/o Keystone Pacific, 108 Lamplighter, Irvine, CA 92620. Please include one (1) check made out to Woodbury Community Association. The submittal check is a non-refundable design review fee in the amount noted above. The submittal fee can also be paid at kppm.cincwebaxis.com under Account Info/Architectural.

A description of the Artificial Turf System that will be used, including specific information on:

- g. Artificial Grass Surface, including validation of total lead (“Pb”) content in yarn fibers.
- h. Definition of type and depth of aggregate base materials and site construction plan.
- i. Definition of soil-stabilizing fabric, including permeability specification sheet and a Material Safety Data Sheet (“MSDS”).
- j. Definition of infill materials, including specification sheet and a MSDS.
- k. Definition of seaming materials and adhesives, including specification sheet and a MSDS; and
- l. Copy of manufacturer’s warranty for all materials, workmanship and builder's warranty statement for workmanship for construction (California contractors are required to provide a minimum of one (1) year workmanship warranty).

Please do not write below this line.

The proposed _____ project has been Approved Denied

Signed: _____ of the DRC Date: _____

General Conditions

1. DRC approval does not waive or constitute or reflect compliance with any federal, state, or local law, ordinance, or code.
2. DRC approval does not constitute acceptance of any technical or engineering specification; and the Master Association assumes no responsibility for such. The property owner is responsible for all technical and engineering specifications. The DRC reviews for aesthetic purposes only.

3. Landscaping for any residential Lot or dwelling unit shall be installed in all yard areas within two hundred seventy (270) days following the conveyance of the Lot to the first owner thereof.
4. Any oversight of a provision of the Master Declaration, or a provision in the Design Guidelines, does not waive the rule. Corrections may be required. Only improvements depicted on the plans can be reviewed by the DRC. The Owner is responsible to ensure all improvements are depicted on the plans submitted. Any improvements not depicted on the plans are not approved.
5. The use of a neighbor's yard for construction access is not permitted unless the neighbor has given written consent that includes a description of the access area. The use of property owned and/or maintained by the Master Association and/or Sub Association for construction access or storage is not permitted, unless authorized in writing by the Master Association and/or Sub Association and the Applicant signs an indemnification for damage and posts a construction deposit for repairs of damage to property owned and/or maintained by the Master Association.
6. Building materials may not be stored on streets, sidewalks, or on property owned and/or maintained by the Master Association and/or Sub Association. Streets may not be obstructed by construction equipment.
7. The property owner is financially responsible for any repairs to property owned and/or maintained by the Master Association and/or Sub Association damaged by a property owner's project.
8. Approval of plans and specifications is not authorization to proceed with improvements on any property other than the property reviewed by the DRC and owned by the applicant.
9. Approval of plans and specifications is not authorization to revise the original drainage system installed by the Merchant Builder and approved by the City.
10. Applicant understands and agrees that Applicant must comply with all of the provisions of the Design Guidelines.
12. All of the provisions of the Design Guidelines (including, but not limited to, the Conditions of Approval) are the provisions of the Master Declaration regarding Design Review; and are incorporated herein by this reference. The applicant has read and understands all provisions and agrees to comply therewith.
12. In the event that the City and/or County require modifications to the plans and specifications previously approved by the DRC, the Owner shall submit to the DRC all modifications to the plans. The DRC shall have the right to review and impose further conditions on such modifications which are not inconsistent with the requirements imposed by the City and/or County. The DRC shall have the right to impose conditions of approval of proposed Improvements which are more restrictive than conditions as may be imposed by the City and/or County.

The approval shall not be held to permit any violation of federal, state, or local regulation.

Owner's Signature